

seal (b). But no such distinction has ever yet been made, and V. C. Kindersley, as we have seen, required a release because the trust was by *parol*.

[45. **Property falling in after release.** — A release of the executors and the estate of the testator given by a pecuniary legatee on payment of part of his legacy, on the footing of the estate being insufficient for payment of the legacies in full, will not enure for the benefit of the residuary legatee, if, by reason of additional funds falling in, the estate subsequently becomes sufficient to make a further payment to the legatees (*c*).]

46. **Release from trustees to trustees.** — The trust fund is not unfrequently transferred from the trustees of an old settlement to the trustees of a new settlement, and the trustees of the old settlement insist on a general release before they will part with the fund, while, on the other hand, the trustees of the new settlement feel a reluctance to give more than a simple receipt. The requisition of the trustees of the old settlement has usually been complied with, but perhaps it could not be enforced (*d*). Of course, the trustees of the new settlement cannot be called upon to enter into any covenant of indemnity.

47. **Expense of the release.** — As the party to benefit by the deed is, in general, the one to prepare it, the release will be drawn by the solicitor of the trustee. Another reason would be that the trustee has the necessary documents in his possession. The expense must be paid out of the trust fund.

48. **Order of the Court.** — When a trustee pays money under the direction of the Court, he is indemnified by the order itself, and is not entitled to any release from the parties (*e*). It would be impossible to hold a trustee answerable

(*b*) *Re Wright's Trust*, 3 K. & J. 421; and see *Re Cater's Trusts*, 25 Beav. 366.

[(*c*) *Re Ghost's Trusts*, 49 L. T. N. S. 588.]

(*d*) *Re Cater's Trusts*, 25 Beav. 366.

(*e*) See *Waller v. Barrett*, 24 Beav. 413; *Gillespie v. Alexander*, 3 Russ.

137; *Underwood v. Hatton*, 5 Beav. 39; *Farrell v. Smith*, 2 B. & B. 337; *Fletcher v. Stevenson*, 3 Hare, 370; *Knatchbull v. Fearnhead*, 3 M. & Cr. 126; *David v. Frowd*, 1 M. & K. 209; *Sawyer v. Birchmore*, 1 Keen, 401; *Smith v. Smith*, 1 Dr. & Sm. 384; *Bennett v. Lytton*, 2 J. & H. 155; *Williams v. Headland*, 4 Giff. 495; Eng-